Cal. Code Regs. Tit. 15, § 3574 - Sex Offender Treatment

State Regulations | Compare

(a) The requirement for a supervised person to attend sex offender treatment is established pursuant to Penal Code (PC) section 3008(d), persons released to parole and required to register pursuant to PC sections 290 to 290.023 shall participate in a sex offender management program. The sex offender management program is comprised of three treatment phases (Curriculum Phase, Maintenance Phase, Aftercare Phase), Containment Team Meetings (CTM), and polygraph examinations. Sex offender treatment providers (who are trained and certified pursuant to PC 290.09) shall be

subject to the terms of the California Sex Offender Management Board.

(1) Curriculum Phase, also known as the active phase, is when the supervised person attends individual and group therapy sessions, at the prescribed hours per week, as determined by the sex offender treatment provider. These sessions focus on the goals and objectives of the treatment plan determined by the sex offender treatment provider through the sex offense specific treatment curriculum. It also involves the completion of mandated State Authorized Risk Assessment Tools for Sex Offenders (SARATSO) and the participation in polygraph assessments.

(2) Maintenance Phase is a phase where the supervised person works to maintain the gains made in the curriculum phase. Maintenance phase occurs when a supervised person has addressed the underlying issues related to their offending behavior, developed skills to lead a pro-social life, and mitigated their dynamic risk factors (according to the SARATSO assessment tools), as determined by the sex offender treatment provider, allowing for adjustment of treatment requirements. While in the maintenance phase, the supervised person is expected to continue to work towards their prescribed treatment plan goals, complete SARATSO assessments, participate in polygraph assessments, and attend group sessions as determined by the sex offender treatment provider. The supervised person may be required to attend in person sessions weekly, monthly, or quarterly, based on their predetermined needs and assessments by the sex offender treatment provider.

(3) Aftercare Phase is a voluntary phase in the format of a support group with the sex offender treatment provider. This phase is for supervised persons who voluntarily continue their participation in the sex offender management program after they have successfully completed the curriculum and maintenance phases or persons who have been discharged from parole supervision.

(A) Persons voluntarily participating in the aftercare phase are responsible for any costs associated with participation.

(4) Containment Team Meeting is a meeting with all involved parties, as referenced in subsection 3574(a)(4)(A), whose purpose is to review the supervised person's treatment progress, dynamic risk factors, polygraph results, community reintegration, response to parole supervision, supervision category, and relevant individual case factors to evaluate the supervised person's readiness for sex offender management program completion.

(A) The Containment Team shall normally be comprised of a parole agent, unit supervisor or assistant unit supervisor, supervised person, contracted clinician (licensed psychiatrist, psychologist, or psychiatric social worker directly treating the supervised person), and victim advocacy representative. In the event all members of the Containment Team are not available to meet, the Containment Team shall minimally consist of a contracted clinician, parole agent, unit supervisor or assistant unit supervisor, and the supervised person. The Containment Team may also include other relevant stakeholders (e.g. Division of Adult Parole Operations and community program managers, polygraph examiner, etc.), family members of the supervised person, or any person in the supervised person's life that wishes to participate and can provide a first-hand account of the positive progress the supervised person is making.

(5) A Polygraph is a machine that measures a person's physiological responses when they respond to questions. Polygraph assessments are completed or contracted by the sex offender treatment provider as required by PC section 3008(d)(3).

(b) Persons placed on parole on or after July 1, 2012, required to register pursuant to PC sections 290 to 290.023, inclusive, shall successfully complete a sex offender management program in accordance with PC section 3008(d). Program participation shall be no less than one year, up to the entire period of parole. Participation in the sex offender management program is required, regardless of when the qualifying offense was committed.

(c) The sex offender treatment provider prescribes the number of treatment hours per week as determined by the supervised person's risks, needs, responsivity, and offense-free time in the community.

(d) Supervised persons may complete a sex offender management program before discharge from parole, as contemplated by the PC section 3008(d).

(e) The Containment Team's review of program completion is solely to determine the length of a supervised person's participation and progress in sex offender treatment. This review is independent of whether the supervised person should be discharged from parole and the electronic monitoring requirements of the supervised person pursuant to PC 3010.10. The CTM schedule shall be as follows:

(1) The initial CTM shall be between 90 and 100 calendar days from release to parole, or between 90 and 100 calendar days following a release of a supervised person who has spent 90 days or more in custody. The purpose of this CTM is to determine the most appropriate level of parole supervision needed for monitoring the supervised person while in the community, in accordance with Section 3573(c).

(2) The second CTM shall be within nine months following the first CTM (one-year CTM). This is the first review to determine whether the supervised person's sex offender management program requirements have been satisfied, completing their statutory requirement to successfully complete a sex offender management program.

(3) All subsequent CTMs shall be at least annually thereafter in accordance with the supervised person's level of parole supervision.

(f) When the Containment Team makes a determination to retain a participant in a sex offender management program, the determination shall be supported by good cause, as defined in Section 3000. A determination to retain a supervised person in a sex offender management program shall be stated in writing, signed by the sex offender treatment provider and parole agent on the CDCR Form 3043 Containment Team Meeting / Earned

Discharge Consideration Committee (Rev.11/24), which is incorporated by reference. This completed form shall be delivered to the supervised person within 30 calendar days of the CTM and maintained in the supervised person's file. Reasons to retain a supervised person in a sex offender management program may include, but are not limited to:

(1) Pursuant to Section 3573, a Level of Service or Case Management Inventory (LS/CMI) score of 11 or higher.

(2) Pursuant to Section 3573, a Stable-2007 score of four or higher for males only.

(3) A current polygraph completed with deception found or new disclosure admissions that the supervised person has committed acts that would incur a technical or law violation.

(4) Parole violation(s), relevant to the supervised person's sex offense or adherence to the Conditions and Special Conditions of Parole associated with their sex offense, that occurred within one year of the review.

(g) The parole agent and unit supervisor may re-refer a supervised person to a sex offender management program for evaluation if there is a change in the supervised person's behaviors related to the risk of re-offense to a level likely to lead to a risk to public safety, using the CDCR 1502 (Rev. 07/24) Activity Report. A re-referral may also be initiated at the request of the supervised person.

(1) Upon re-referral, the sex offender treatment provider shall complete the dynamic risk and violence risk assessments, pursuant to section 3573 and PC sections 290.04 and 290.09, to determine if the risk to re-offend has increased.

(A) If risk to re-offend has increased, the supervised person will be required to attend the sex offender management program, with the prescribed hours of treatment being determined by the sex offender treatment provider, until the increased risk to re-offend has been mitigated. While the supervised person is attending a sex offender management program, CTMs shall be re-established in

accordance with Section 3574.

(B) If the sex offender treatment provider determines there is no increased risk in re-offense, the re-referral shall be considered closed, and the sex offender management program requirements remain completed.

Notes

Cal. Code Regs. Tit. 15, § 3574
Note: Authority cited: Sections 5058 and 5058.3, Penal Code. Reference: Sections 290 through 290.023, 3008, 5054 and 9003, Penal Code.

1. New section filed 10-14-2024 as an emergency; operative 10/14/2024 (Register 2024, No. 42). Pursuant to Penal Code section 5058.3, a Certificate of Compliance must be transmitted to OAL by 3-24-2025 or emergency language will be repealed by operation of law on the following day.
2. New section refiled 3-24-2025 as an emergency; operative 3/24/2025 (Register 2025, No. 13). Pursuant to Penal Code section 5058.3 a Certificate of Compliance must be transmitted to OAL by 6-22-2025 or emergency language will be repealed by operation of law on the following day.
3. Certificate of Compliance as to 3-24-2025, including amendment of section, transmitted to OAL 4-17-2025 and filed 4/17/2025 (Register 2025, No. 16).

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